

AW Plumbing LLC — Residential Plumbing Service Terms and Conditions (Oregon)

Effective Date: 03/01/2026

1. Definitions

- Company: AW Plumbing LLC.
- Customer: The person or entity authorizing the Work and responsible for payment.
- Property: The residential premises where the Work is performed.
- Work: The plumbing services, labor, and materials described in the Company's estimate, work order, or change order.
- Hidden/Latent Conditions: Conditions not reasonably visible or discoverable prior to opening walls, fixtures, or systems, including concealed deterioration or legacy non-code installations.

2. Scope of Work; Estimates; Changes and Change Orders

- Scope Limited to Writing: The Work is limited to the specific tasks described in the Company's written estimate or work order for the identified Property.
- Estimates: Any pricing provided prior to completion is an estimate unless expressly stated as a fixed price. Estimates are based on information available at the time and may change due to Hidden/Latent Conditions or Customer-directed changes.
- Changes: Any Customer-requested additions, deletions, or scope revisions require written authorization via change order. Pricing and schedule impacts will be disclosed and must be approved before commencement of the changed Work.
- Refusal of Additional Work: The Company may decline to perform Work outside the agreed scope unless and until a new written agreement or change order is executed.

3. Work Authorization; Access; Utilities; Photographs; Stop-Work

- Authorization: Customer authorizes the Company and its representatives to perform the Work described in the estimate, work order, or approved change order.
- Access: Customer will provide timely and safe access to the Property and Work areas during normal business hours or as otherwise agreed, including access to crawlspaces, attics, utility rooms, basements, and exterior areas as needed.
- Utilities: Customer will ensure that necessary utilities (including water, gas, and electricity) are available and safe to use during the Work. The Company is not responsible for delays or damage arising from unavailable or unsafe utilities.

- **Photographs:** Customer authorizes the Company to take photographs or videos of the Work areas before, during, and after performance for documentation, quality assurance, and insurance purposes.
- **Stop-Work Rights:** The Company may suspend or stop Work, without liability, if (a) conditions are unsafe; (b) the Company reasonably believes continued Work may cause damage due to Hidden/Latent Conditions; (c) required approvals, access, or utilities are not provided; or (d) the Customer fails to make due payments. Work will resume once the issue is cured and any resulting schedule or price adjustments are documented.

4. Hidden/Latent Conditions; Brittle or Non-Code Legacy Piping; Allocation of Risk

- **No Responsibility for Hidden/Latent Conditions:** The Company is not responsible for pre-existing defects or conditions concealed by finishes, soil, or structure, including hidden leaks; deteriorated, corroded, or brittle piping; improperly vented systems; or prior non-code installations discovered during the Work.
- **Older Homes Risk Allocation:** Customer acknowledges that older homes often contain brittle, corroded, or non-code piping and fixtures. Customer assumes the risk of incidental damage to such materials during standard plumbing procedures, including but not limited to drain cleaning/cabling, fixture replacement, shutoff operation, and water heater replacement.
- **Additional Repairs as Change Orders:** Any repairs or replacements required due to Hidden/Latent Conditions or legacy non-code systems will be treated as a change order and billed separately.

5. Customer Duties

- **Clearance and Protection:** Before Work begins, Customer will clear Work areas of personal property, furnishings, valuables, and appliances as appropriate, and will provide a clean, unobstructed path to the Work areas. Customer is responsible for protecting or removing fragile items and finishes adjacent to the Work.
- **Shutoffs and Valuables:** Customer will identify and provide access to main and local shutoffs. Customer will secure valuables and sensitive items prior to commencement.
- **Pets and Occupants:** Customer will secure pets and inform occupants of the Work schedule and areas affected to ensure safety.
- **Hazard Disclosure:** Customer will promptly disclose any known hazardous conditions or pre-existing issues (e.g., asbestos-containing materials, mold, lead, active leaks, structural instability, prior flood damage).
- **Water-Damage Mitigation:** If a leak or water release occurs, Customer will promptly shut off water (if safe), protect or remove personal property from the affected area, and take reasonable steps to mitigate damage. Customer will promptly notify the Company to allow timely response.

6. Warranty; Disclaimers

- **Workmanship Warranty:** The Company warrants its workmanship for 12 months from the date the Work is completed.
- **Exclusions:** The warranty does not cover (a) materials, equipment, or fixtures supplied by Customer or third parties; (b) pre-existing conditions; (c) failures caused by Hidden/Latent Conditions; (d) misuse, neglect, improper maintenance, or alterations/repairs by others after completion; or (e) failures attributable to legacy non-code or deteriorated piping and systems.
- **Drain Cleaning and Legacy Piping:** No warranty is provided for drain cleaning or for Work involving non-code or deteriorated piping or components.
- **Manufacturer Warranties:** Any manufacturer warranties on materials or equipment, if available, are assigned to Customer to the extent permitted.
- **Disclaimer of Other Warranties:** Except for the express workmanship warranty above, the Company disclaims all other warranties, express or implied, including any implied warranties of merchantability or fitness for a particular purpose, to the fullest extent permitted by Oregon law.

7. Limitations of Liability; Damage Procedures; Notice

- **Limitation of Liability:** The Company's total liability for any claim arising out of the Work is limited to the amount paid by Customer for the specific service giving rise to the claim.
- **No Consequential or Special Damages:** The Company is not liable for incidental, consequential, special, indirect, loss-of-use, loss-of-value, or delay damages.
- **Notice and Opportunity to Cure:** Customer must notify the Company in writing of any alleged property damage or defect within 48 hours of discovery and allow the Company reasonable access and opportunity to inspect and, if attributable to the Company's negligence, to repair or arrange for repair before Customer seeks outside remedies. Failure to provide timely notice and access constitutes a waiver of such claims to the fullest extent permitted by law.

8. Payment Terms

- **Pricing and Deposits:** A deposit may be required prior to scheduling or mobilization. For larger projects, progress payments may be required based on milestones or percentage completion, as stated in the estimate or work order.
- **Final Payment:** Unless otherwise agreed in writing, final payment is due upon substantial completion of the Work described in the estimate or work order, irrespective of pending minor punch-list items.
- **Late Fees:** Past-due amounts accrue a late charge of 1.5% per month (18% per annum) or the maximum allowed by law, whichever is less, from the due date until paid.
- **Suspension for Nonpayment:** The Company may suspend Work for nonpayment without liability and may condition resumption on payment of past-due sums plus demobilization/remobilization costs and schedule adjustments.

- **Collection Costs:** If collection efforts are required, Customer will pay all reasonable costs of collection, including reasonable attorney fees and costs, to the extent permitted by Oregon law.
- **Payment Methods; Chargebacks:** Customer agrees not to initiate chargebacks without first providing the written notice and opportunity to cure described in Section 7.

9. Dispute Resolution; Governing Law; Attorney Fees

- **Mediation/Arbitration:** Any controversy or claim arising out of or relating to these Terms or the Work that cannot be resolved informally will be submitted to mediation in Josephine County, Oregon. If not resolved in mediation, the dispute will be resolved by binding arbitration in Josephine County, Oregon, before a single neutral arbitrator, under applicable rules of a reputable arbitration administrator. Judgment on the award may be entered in any court having jurisdiction.
- **Governing Law; Venue:** These Terms are governed by the laws of the State of Oregon, without regard to conflict-of-law rules. For any court proceedings permitted by law or necessary to enforce or confirm an arbitration award, the exclusive venue will be the state courts of Josephine County, Oregon.
- **Attorney Fees:** The prevailing party in any action, arbitration, or proceeding to enforce these Terms is entitled to recover reasonable attorney fees and costs.

10. Miscellaneous

- **Entire Agreement:** These Terms, together with the estimate, work order(s), and any authorized change orders, constitute the entire agreement and supersede all prior discussions or proposals regarding the Work.
- **Amendments; Waivers:** Any amendment or waiver must be in a signed writing by the party to be bound.
- **Severability:** If any provision is held invalid or unenforceable, the remaining provisions remain in effect.
- **Assignment:** Customer may not assign rights or obligations without the Company's prior written consent. The Company may subcontract portions of the Work, remaining responsible for its subcontractors' performance.
- **No Third-Party Beneficiaries:** No third party has rights under these Terms.
- **Force Majeure:** The Company is not liable for delays or nonperformance due to events beyond its reasonable control, including severe weather, supply chain disruptions, labor shortages, utility failures, or governmental actions.
- **Electronic Signatures:** Electronic signatures and approvals (including email confirmations) are valid and binding.

By accepting this booking, Customer acknowledges that they have read, understand, and agree to be bound by these Terms and Conditions.

For questions about these Terms, contact AW Plumbing LLC at (541) 414-2026 or andrew@awplumbingservices.com.

These Terms apply to residential services performed in Oregon.

Venue and dispute resolution are as stated above in Josephine County, Oregon.